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PREMIUM NOTES

RPSC — Polity Notes

RPSC Test Series — StuDy

High-yield facts, formulas and trap-radar — made for the real exam hall.

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RPSC — Polity Notes

Constitution — Structure & Sources

- Preamble: Sovereign, Socialist, Secular, Democratic, Republic — Justice, Liberty, Equality, Fraternity. 'Socialist/Secular/Integrity' added by 42nd Amendment 1976. Preamble is part of the Constitution (Kesavananda Bharati).
- Borrowed features: Parliamentary system + rule of law (UK), Fundamental Rights + judicial review (USA), Directive Principles (Ireland), federal with strong centre (Canada), emergency (Germany), amendment (South Africa), concurrent list (Australia).
- Parts & schedules to map: Part III (FR, Art 12–35), Part IV (DPSP, 36–51), Part IVA (Duties, 51A — 11 duties), Part V (Union), VI (States), IX (Panchayats), IXA (Municipalities), XI (Centre–State relations). 12 Schedules (originally 8).
- Constituent Assembly: formed 1946 (Cabinet Mission); President Rajendra Prasad; Drafting Committee chairman B.R. Ambedkar; adopted 26 Nov 1949, effective 26 Jan 1950; 2 yrs 11 months 18 days.

Fundamental Rights & Writs

- Art 14 (equality before law), 15 (no discrimination), 16 (equal opportunity), 17 (untouchability abolished), 18 (titles abolished), 19 (six freedoms — originally seven; property removed by 44th), 21 (life & personal liberty — widest interpretation), 21A (education 6–14, 86th Amd), 23–24 (exploitation), 25–28 (religion), 29–30 (culture/education), 32 (writs — 'heart and soul' — Ambedkar).
- Writs: Habeas Corpus (release from illegal detention), Mandamus (command to do duty), Prohibition (higher court stops lower), Certiorari (quash order), Quo Warranto (by what authority?). SC under Art 32, HC under Art 226 (wider — 'for any other purpose').
- Rights available to citizens only: Art 15, 16, 19, 29, 30. To all persons: 14, 20, 21, 25 etc. FRs suspended during emergency except Art 20 & 21 (44th Amd).

Union & State Executive

- President: elected by proportional representation (STV) — electoral college of elected MPs + MLAs; term 5 yrs; impeachment Art 61 (only for 'violation of the Constitution'); pocket veto used by Zail Singh (Post Office Bill).
- PM & Council of Ministers: collectively responsible to Lok Sabha (Art 75(3)); strength capped at 15% of LS (91st Amd 2003).
- Governor: appointed by President (Art 155), holds office during pleasure; Art 200 (assent to bills), Art 213 (ordinance), Art 161 (pardon — cannot pardon death sentence, unlike President Art 72).
- State legislature: Rajasthan has only Legislative Assembly (no Council). Councils exist in 6 states: AP, Telangana, UP, Bihar, Maharashtra, Karnataka. Money bill only in Assembly.

Judiciary, Bodies & Local Governance

- Supreme Court: Art 124; collegium system (judges appointing judges — Second & Third Judges cases); NJAC struck down (2015). Original jurisdiction Art 131; appellate 132–134; advisory 143.
- Constitutional bodies: Election Commission (324), UPSC (315), Finance Commission (280), CAG (148), State PSC (315), GST Council (279A, 101st Amd). Non-constitutional: NITI Aayog, NHRC, CVC, Lokpal.

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- 73rd Amendment: Part IX, 11th Schedule (29 subjects), 3-tier Panchayats, reservation for SC/ST + ⅓ women (Rajasthan raised to 50%), State Election Commission, State Finance Commission. Rajasthan: 50% women reservation in PRIs.
- 74th Amendment: Part IXA, 12th Schedule (18 subjects) — Nagar Panchayat, Municipal Council, Municipal Corporation.

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